

On the topic of *Free Speech*, a subcategory of *Free Expression*, authors Chemerinsky and Gillman have written the following book, “Free Speech on Campus”, highlighting both the controversies and consequences that arise from the use of *hate speech*. In fact, they believe that “...all ideas and views should be able to be expressed on college campuses no matter how offensive or how uncomfortable they make people feel. But there are steps that campuses can and should take to create inclusive communities...” (*Free Speech on Campus*, 19) It is more than safe to say that Chemerinsky and Gillman have built compelling arguments to support this claim: how freedom of expression is fundamental to freedoms such as *thought* and *speech*, how *speech codes* can be too vague, potentially causing more harm than good, and how censoring words will lead to the censoring of ideas soon afterwards.

An expression is an action based on an idea or belief that springs from an initial thought. One has a thought which can be a belief, or it can blossom into an idea, which in turn gets expressed either through speech or some other form. The freedom to express oneself is looked at by the Supreme Court as having a “fundamental right within our political system” (26) –a bough for which “nearly every other form of freedom” (*Free Speech on Campus*, 26) branches out from. Chemerinsky and Gillman’s thesis is built first on the ability to have thoughts, and then to be able to express them, whatever they may be.

What is a *speech code* exactly? And how can it be helpful to have them implemented? A speech code is a law, or rule, set by a system, e.g., educational, political, etc., which aims to dissuade the use of words and phrases considered as *hate speech*. Chemerinsky and Gillman emphasize how speech codes issued by the mentioned social systems, to protect against hate speech, have shown to be “vague and overbroad”. (*Free Speech on Campus*, 83) This risks affecting innocent groups of people. If a limit is put on the speech of a particular group of

people, said limit needs to be explicit in its description of the words that can and cannot be said, but even then the authors argue this decision can lead to greater harm.

Social systems that censor ideas— a potential byproduct of having speech codes. The "censorship of words"(87), Chemerinsky and Gillman state, "leads to the censorship of ideas". (87) As they aren't seemingly for the use of hate speech, they recognize that we are individual people, with our own thoughts and ideas; and in their words, "...there is simply no way to regulate hate speech without censoring ideas." (*Freedom of Speech on Campus*, 68)

Why then, do these arguments seem so compelling? Let us look from the other side of the table. Imagine living in a world where you are scared to have an original thought. Why is that? What events have happened prior to this? Maybe someone at some point had a thought—and then expressed that thought, and now due to the act of expression, has been punished in some way. But why was the individual punished? Was the thought one of bad nature, meaning it intended to cause harm e.g., emotional, physical, etc., or was it by chance a thought that manifested into an opinion or belief that shaved against the public's popular understandings? It's important to highlight the difference: the former has a reason to punish because there was intended harm, (although this can be tricky because some can think a thought to be harmful—evil, while others can find the same thought to be liberating—good; it depends on the context), and the latter being an example of social systems abusing their power to adapt to new ideas that can potentially be of benefit. Simply put, if we are punished for expressing ourselves, albeit our ideas, we may very well stop expressing altogether, which is to deny ourselves the essence of what it means to be human. Imagine how dry a college experience would then be.

Let us consider a counterargument: *we need rules in place on college campuses to protect against those that use words and/or phrases that can in turn cause harm to a particular group of*

*people*. On the surface, this seems like a sound argument—don't say things that are going to harm others, but what if everyone has a different list of topics and terms they deem harmful and offensive? What if everyone defines harm differently? How then can it be decided, what to say and what to omit? And what if certain words are being used to express an idea—sure this idea has the potential to be harmful, but it is the act of expression that is the focus here.